Single Justice Procedure Notice

MR MIKE MOUSE
38A BAKER STREET
LONDON
OO7 7OO

TfL Case No 2003239

Date of birth 21 Apr 1984

Date of Posting 28 Aug 2014

You have been charged with an offence committed on a Transport for London service as detailed in the attached pack

You now have 21 days to plead either GUILTY or NOT GUILTY to the offence

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Details of the charge are on the next sheet

What happens next?

Fill in the forms in this pack, including the Statement of Assets form (MC100)

If you **plead guilty** using one of the options in this notice, you will usually get a **33%** reduction on any fine

Important

You have 21 days to respond or you may be found guilty and sentenced in your absence.

If you want to consult a solicitor or advice agency, you must do so immediately.

For all matters regarding this Notice, please contact LAVENDER HILL Magistrates Court at

176a Lavender Hill
Clapham Junction
London
SW11 1JU

To contact Transport for London please email

be@tfl.gov.uk

Charge Sheet

To:
MR MIKE MOUSE
38A BAKER STREET
LONDON
OO7 7OO

DOB 21 Apr 1984

TfL Case Number

2003239

Charge number 2003239

You have been charged with the following offence:

That you, on 24 Sep 2013 at HIGH STREET, W3 Being a passenger on a Public Service Vehicle operated on behalf of London Bus Services Limited being used for the carriage of passengers at separate fares, did use in relation to the journey you were taking a ticket which had been issued for use by another person on terms that it is not transferable. Contrary to Regulation 7(1)(b) of the Public Service Vehicles (conduct of Drivers, Inspectors, Conductors & Passengers) Regulations 1990 SI No. 1020 and contrary to Section 25(3) of the Public Passenger Vehicles Act 1981.

Charge authorised by : Abbey Ameen, Solicitor, Transport for London, 9G3 Palestra, 197 Blackfriars Road, SE1 8NJ Date : 28 Aug 2014 Signed:

Statement of Facts

On Tuesday 24th September 2013 HIGH STREET/MARKET PLACE, W3 you were on board a route 607 bus, garage code 648 with the intention of travelling from ACTON to ACTON MARKET PLACE a normal adult fare of £2.40. During the course of this journey at about 2:47 PM you offered for the inspection of London Bus Inspector LB3009 a £3.60 Discount SINGLE Pay as you go pass in oystercard format, serial number 054103837072, which had been issued to another person on terms that it was not transferable and was therefore not valid for travel by you. WHEN QUESTIONED YOU SAID "ITS NOT MINE" When informed you were being reported you said "WHAT ARE YOU DOING THIS FOR AFTER YOU DO ALL YOUR STUPID PAPER WORK".

Application is being made for a £125 contribution towards the costs of Transport for London.

Further costs may be incurred if additional documentation is required or if the matter is not resolved by a Single Justice.

There will also be an application for compensation of £2.40 in respect of the fare avoided

Please retain this for your own information

Plead by post

To:
Mr Mike Mouse
38a Baker Street
London
OO7 7OO

DOB 21 Apr 1984

TfL Case Number

2003239

Your plea options

1. **Plead guilty under the "Single Justice Procedure"** which means a magistrate will make a decision without a formal court hearing:
    - You do not come to court
    - You'll be sent details of any sentence and fine
    - You will be told if the magistrate decides that you need to come to court
    - You must complete and send the enclosed Statement of Means form (MC100)
2. **Plead guilty in court**:
    - You will be sent a summons giving you a date and time to attend court
    - The hearing is likely to go ahead if you do not attend
3. **Plead not guilty:**
    - You will be sent a summons giving you a date and time to attend your trial
    - The trial is likely to go ahead if you do not attend
    - If you plead not guilty, you must fill in a 'Not guilty : information for the court' form from this pack

Select **ONE** of the following options

☐ **Plead guilty** I do not want to come to court

☐ **Plead guilty** I want to come to court

☐ **Plead not guilty** Send me the date of my trial

Will you require an interpreter? Yes ☐ No ☐

If so, which language? _____

Please turn over the page for the opportunity to tell the Magistrate anything you would like considered when making a decision about your case

Mitigating Circumstances (optional) – what you want the Magistrate to consider when making a decision about your case

Your plea - continued

Are your details correct?

Only fill in this box if your details are **different** from those shown below.

Mr Mike Mouse
38a Baker Street
London
OO7 7OO

Date of Birth 21 Apr 1984
Gender Male

Name:
Address:

Postcode:
Phone:
DOB:
Gender:

Note:

When the court has received your plea(s), the magistrate makes a decision by considering:

- the charges and the witness statements (copies included in this pack)
- anything you write in mitigation
- your financial circumstances (form MC100)

You must now sign below to confirm your plea

Signature:

Date

Return the 'Plead by post' forms to:

Justices' Clerk
LAVENDER HILL
176a Lavender Hill
Clapham Junction
London
SW11 1JU

Not Guilty : Information for the Court

I am pleading Not Guilty because :

Defence Witness 1 (optional)

Name :

Address :

Date of Birth (dd/mm/yyyy) :

Will this witness require an interpreter? Yes ☐ No ☐ If so, which language? _____

Defence Witness 2 (optional)

Name :

Address :

Date of Birth (dd/mm/yyyy) :

Will this witness require an interpreter? Yes ☐ No ☐ If so, which language? _____

Prosecution Witness Statements

The Prosecution will rely on the witness statement(s) sent to you with this notice. Tell us here if you object to the witness statement(s) and why :

You **must** also tell the prosecutor, within 21 days, if you object to the witness statement(s) and why. The prosecutor's contact information is provided with the witness statements.

TfL Confidential

Transport for London

Transport for London
Enforcement & On Street Operations
9G4 Palestra
197 Blackfriars Road
London
SE1 8NJ

020 7027 9158
Email: be@tfl.gov.uk
www.tfl.gov.uk

TfL Case Number 2003239

To: Mr Mike Mouse
Of: 38a Baker Street, London, OO7 7OO

The following charge(s) against you will be heard by a Single Justice or in a Magistrates' Court :

1. 71B Using a pass issued to another person

This offence / these offences may be tried only in the Magistrates' Court or by a Single Justice

Written statements have been made by the witnesses named below and copies of their statements are enclosed. Each of these statements will be tendered in evidence before the Magistrates or Single Justice. If you object to the statement(s) being so tendered you must notify the Prosecutor within 21 days.

Witnesses will only be called to give oral evidence if you plead Not Guilty

If you intend to consult a Solicitor about your case you should do so at once and hand this Notice and the Statements to him so that he may deal with them.

NAMES OF WITNESSES WHOSE STATEMENTS ARE ENCLOSED

LIAM O'SHEA

Transport for London

Statement of Witness

(Criminal Procedure Rules, r. 27.2; Criminal Justice Act 1967, s.9, Magistrates' Courts act 1980, s.5B)

Statement of: LIAM O'SHEA

Age of witness: Over 18 Occupation of witness: Revenue Protection Inspector No. LB3009

Address of witness: 197 Blackfriars Road, London, SE1 8NJ.

Relative to: Mr Mike Mouse, 38a Baker Street, London, OO7 7OO 21 Apr 1984

This statement consisting of ONE page(s) each signed by me, is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

Signed…… …… Date……

This statement is compiled from original notes made at 3:05 PM on 24 Sep 2013. On Tuesday 24th September 2013 at 2:47 PM, I was on duty in uniform at HIGH STREET/MARKET PLACE, W3 when I ticket checked a route 607 bus, garage code 648 on a journey in service to HAYES BY PASS. On boarding the OYSTER READERS WERE CHECKED. I approached a male passenger standing on the lower deck who I now know to be MR JASON TAYLOR of 28 PAYNES WALK, LONDON, W6 8PF who was taking a journey from ACTON to ACTON MARKET PLACE a fare of £2.40. Mr Taylor offered for my inspection a £3.60 Discount SINGLE Pay as you go pass in oystercard format, serial number 054103837072 . I observed that the pass was being shown without a valid photocard. I sealed this in evidence bag serial number 301856 marked exhibit LO/1 and now offer this in evidence. I said to Mr Taylor, "IS THIS THE PASS YOU ARE USING FOR YOUR JOURNEY?". He said, "YES". I said, "DO YOU HAVE THE PHOTOCARD FOR THIS PASS? THESE PASSES ARE NOT TRANSFERABLE". He said, "ITS NOT MINE". I asked him for his name and address. Details were given as Mr Jason Taylor, 28 Paynes Walk, London, W6 8PF .These details were verified by voters check. I said "I am withdrawing this OYSTER and I will be submitting a report to the Transport for London Prosecutions Team for their consideration." He said "WHAT ARE YOU DOING THIS FOR AFTER YOU DO ALL YOUR STUPID PAPER WORK"

Signed …… …… Signature witnessed by …… …… ……
LIAM O'SHEA

Your legal obligations

This is an official request from the Justices' Chief Executive* :
Every defendant who is charged with an offence is required to complete a statement of means form.

If you plead guilty - the completed form must accompany any guilty plea. The means information is extremely important because the court will use it to fix the level of the fine.

If you plead not guilty but are later found guilty the information on this form will be needed immediately. It is therefore in your interests to complete this form in advance.

- It is an offence not to provide means information and could result in you being fined up to £500.
- If the form is not completed the court may put back your case to allow for completion of the form.
- If a completed means form is not received by the court, the magistrates will still deal with the case in your absence and you may face a fine in addition to any fine imposed for your original offence(s).
- It is also an offence, punishable by a fine of up to £2500, to provide false information.

You must remember to bring a method of payment with you so that you can pay on the day. Fines can usually be paid either at the court or local bank by :

- credit / debit card
- cash
- personal cheque (with a bankers card)
- postal order.

* - in accordance with section 20A of the Criminal Justice Act 1991 (as amended by section 95 of the Courts Act 2003)

External advice

If you need impartial, external advice on your legal rights, managing your debt or the possible consequences of fines, you can contact:

- **National Debt line**: 0808 8084000 or www.nationaldebtline.co.uk
- **Community Legal Service (CLS) Direct** : 0845 3454345 or www.clsdirect.org.uk
- **Citizens Advice**: www.citizensadvice.org.uk

Returning the form

When to return the form:
The form should be returned as soon as possible. You may be requested to provide evidence of your financial circumstances, e.g. pay slips, benefit book, bills. Therefore, it is advisable to send copies of these when you return this form, or bring them with you on the day of your hearing.

Where to return the form:
The form should be returned by post or in person to the court that issued the summons. The address for this can be found on the summons form or can be obtained from your local magistrates' court. Email or telephone responses are not acceptable.

Further assistance

Should you have problems reading this form, please contact the magistrates' court that issued this notice who will be able to provide the following alternatives:

- Additional languages: Chinese, Greek, Gujarat, Hindi, Kurdish, Punjabi, Portuguese, Serbian, Croatian, Spanish, Turkish, Urdu and Welsh.
- Large print versions of this form are available - please contact the magistrates' court.

Printed language: **English**

HM Courts & Tribunals Service

FINE?

Make sure you can pay

This form gives you a chance to tell the court how much you can pay if you are fined. If you do not give this information to the court, you will be committing an offence and you may be fined more than you can afford.

Statement of your income and outgoings

All sections on this form must be answered and the form returned to the court before your hearing. **It is an offence not to provide means information.** See the other side for details

Please use BLOCK CAPITALS and black ink

HM Courts & Tribunals Service

IMPORTANT - For all your income and outgoings, please indicate if the figures are either: Weekly ☐ Fortnightly ☐ Monthly ☐

1. Personal details

First name(s)

Family name

Address

Postcode

Home telephone number

Mobile telephone number

Date of Birth

Gender Female ☐ Male ☐

National Insurance number

Vehicle registration number

Are you the registered owner of the vehicle? Yes ☐ No ☐

Case number

Date of hearing

Ref: Means information form v7.0

2. Income details

If you are employed

Employer's name

Employer's address

Postcode

Employer's telephone number

Occupation (state if self employed)

Net Pay (take home pay) £

Any other income £

If you are NOT employed

If you are unemployed, state since when

Job Seekers allowance £

If you receive benefits

Income Support	£
Pension credit	£
Tax credit	£
Other credits (housing, child)	£
Other benefits	£
Total income	£

3. Outgoings

Essentials and accommodation

Rent, mortgage or lodgings	£
Council tax	£
Food	£
Clothing	£
Insurance	£
Child maintenance	£

Travel and regular bills

Travel expenses	£
Vehicle fuel	£
Vehicle insurance and tax	£
Vehicle loan	£
Utility bills (gas, water, electricity etc)	£
Telephone (inc mobile)	£
Television subscription (licence, satellite etc)	£

Other

Lottery / entertainment	£
Drinking	£
Smoking	£
County court orders and other fines	£
Loan repayments	£
Catalogues	£
Credit card repayments	£
Total outgoings	£

4. Other Information

Number of dependent children

Ages:

Total savings £

Partner's income or benefits £

Number of adults in your home

Please add any other information you believe we should know about here:

Signed

Date

The information on this form may be used by a magistrates' court, or other authorised organisation acting under the court's instructions, to enforce collection of any court-ordered penalty imposed against the person named on the form in the event of non-payment of that penalty.

TRANSPORT FOR LONDON PROSECUTIONS

Frequently Asked Questions

Why am I being taken to court?

You are being taken to court because it is alleged that you have committed an offence. Details of the alleged offence are on the Charge Sheet enclosed with the Notice.

Do I have to attend the court in person?

No. If you are pleading guilty, you can complete the relevant form included with the Single Justice Notice and return it to the court, along with the means form on which you state your financial incomings and outgoings.

Where can I obtain advice?

You can seek advice from a solicitor or the Citizens Advice Bureau (CAB). Details of local solicitors and the nearest CAB are available from your local library or from any magistrates' court. Transport for London cannot give any advice with regard to completing the forms or on how you should proceed.

What happens if I just ignore the Notice?

If you do nothing, the court may hear the prosecution case in your absence and you will have no opportunity to put your side. You will also lose the reduction in fine for an early plea of guilty.

If I pay the costs will Transport for London withdraw the prosecution?

No. The Notice is telling you that Transport for London intends to apply to the court for a contribution towards the cost of prosecution. If you plead guilty or are found guilty, the court will normally order you to pay a fine, the costs to Transport for London, compensation for the unpaid fare and the statutory surcharge.

If I attend court will I have access to free legal representation?

The court will not issue you with a representation order, often called 'legal aid', in this type of case. However, if you come to court for a trial, you may bring someone to help and advise you how to put your defence to the court.

What happens if I wish to plead not guilty?

You should indicate this on the copy of the Charge Sheet that you return to the court. A date will then be set for a trial when the Inspector(s) concerned will also be present.

Will I be able to question or challenge the Inspector in court?

Yes. If you plead not guilty, you will have an opportunity at the trial to question and challenge the Inspector regarding the alleged offence.

Will a conviction go on my criminal record?

If you plead guilty or the court finds you guilty, you acquire a criminal conviction.

If the court convicts me in my absence or after a trial, do I have a right of appeal?

If, after receiving notice of conviction and sentence, you decide to appeal, you should inform the court as soon as possible. All appeals are to the Crown Court and must be made within 21 days of the conviction.

If the court orders me to make payments, what should I do?

You should pay the full amount immediately. If you cannot do so, contact the court without delay.

If I did not attend court, how will I know the outcome?

The court will inform you in writing of the outcome, normally within two weeks of the hearing.

Further information, including the *Transport for London Revenue Enforcement and Prosecutions Policy*, can be found on our website – http://www.tfl.gov.uk

Single Justice Procedure Notice

MR MIKE MOUSE
38A BAKER STREET
LONDON
OO7 7OO

TfL Case No 2003239

Date of birth 21 Apr 1984

Date of Posting 28 Aug 2014

You have been charged with an offence committed on a Transport for London service as detailed in the attached pack

You now have 21 days to plead either GUILTY or NOT GUILTY to the offence

---

Details of the charge are on the next sheet

What happens next?

Fill in the forms in this pack, including the Statement of Assets form (MC100)

If you **plead guilty** using one of the options in this notice, you will usually get a **33%** reduction on any fine

Important

You have 21 days to respond or you may be found guilty and sentenced in your absence.

If you want to consult a solicitor or advice agency, you must do so immediately.

For all matters regarding this Notice, please contact LAVENDER HILL Magistrates Court at

176a Lavender Hill
Clapham Junction
London
SW11 1JU

To contact Transport for London please email

be@tfl.gov.uk

I certify that I sent this notice and attachments today by first class post to the defendant at the address above

28 Aug 2014

Court Copy

Charge Sheet

To:
MR MIKE MOUSE
38A BAKER STREET
LONDON
OO7 7OO

DOB 21 Apr 1984

TfL Case Number

2003239

Charge number 2003239

You have been charged with the following offence:

That you, on 24 Sep 2013 at HIGH STREET, W3 Being a passenger on a Public Service Vehicle operated on behalf of London Bus Services Limited being used for the carriage of passengers at separate fares, did use in relation to the journey you were taking a ticket which had been issued for use by another person on terms that it is not transferable. Contrary to Regulation 7(1)(b) of the Public Service Vehicles (conduct of Drivers, Inspectors, Conductors & Passengers) Regulations 1990 SI No. 1020 and contrary to Section 25(3) of the Public Passenger Vehicles Act 1981.

Charge authorised by : Abbey Ameen, Solicitor, Transport for London, 9G3 Palestra, 197 Blackfriars Road, SE1 8NJ Date : 28 Aug 2014 Signed:



Statement of Facts

On Tuesday 24th September 2013 HIGH STREET/MARKET PLACE, W3 you were on board a route 607 bus, garage code 648 with the intention of travelling from ACTON to ACTON MARKET PLACE a normal adult fare of £2.40. During the course of this journey at about 2:47 PM you offered for the inspection of London Bus Inspector LB3009 a £3.60 Discount SINGLE Pay as you go pass in oystercard format, serial number 054103837072, which had been issued to another person on terms that it was not transferable and was therefore not valid for travel by you. WHEN QUESTIONED YOU SAID "ITS NOT MINE" When informed you were being reported you said "WHAT ARE YOU DOING THIS FOR AFTER YOU DO ALL YOUR STUPID PAPER WORK".

Application is being made for a £125 contribution towards the costs of Transport for London.

Further costs may be incurred if additional documentation is required or if the matter is not resolved by a Single Justice.

There will also be an application for compensation of £2.40 in respect of the fare avoided

Plead by post

To:
Mr Mike Mouse
38a Baker Street
London
OO7 7OO

DOB 21 Apr 1984

TfL Case Number

2003239

Your plea options

1. **Plead guilty under the "Single Justice Procedure"** which means a magistrate will make a decision without a formal court hearing:
    - You do not come to court
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2. **Plead guilty in court**:
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3. **Plead not guilty:**
    - You will be sent a summons giving you a date and time to attend your trial
    - The trial is likely to go ahead if you do not attend
    - If you plead not guilty, you must fill in a 'Not guilty : information for the court' form from this pack

Select **ONE** of the following options

☐ **Plead guilty** I do not want to come to court

☐ **Plead guilty** I want to come to court

☐ **Plead not guilty** Send me the date of my trial

Will you require an interpreter? Yes ☐ No ☐

If so, which language? _____

Please turn over the page for the opportunity to tell the Magistrate anything you would like considered when making a decision about your case

Mitigating Circumstances (optional) – what you want the Magistrate to consider when making a decision about your case

Your plea - continued

Are your details correct?

Only fill in this box if your details are **different** from those shown below.

Mr Mike Mouse
38a Baker Street
London
OO7 7OO

Date of Birth 21 Apr 1984
Gender Male

Name:
Address:

Postcode:
Phone:
DOB:
Gender:

Note:

When the court has received your plea(s), the magistrate makes a decision by considering:

- the charges and the witness statements (copies included in this pack)
- anything you write in mitigation
- your financial circumstances (form MC100)

You must now sign below to confirm your plea

Signature:

Date

Return the 'Plead by post' forms to:

Justices' Clerk
LAVENDER HILL
176a Lavender Hill
Clapham Junction
London
SW11 1JU

Not Guilty : Information for the Court

I am pleading Not Guilty because :

Defence Witness 1 (optional)

Name :

Address :

Date of Birth (dd/mm/yyyy) :

Will this witness require an interpreter? Yes ☐ No ☐ If so, which language? _____

Defence Witness 2 (optional)

Name :

Address :

Date of Birth (dd/mm/yyyy) :

Will this witness require an interpreter? Yes ☐ No ☐ If so, which language? _____

Prosecution Witness Statements

The Prosecution will rely on the witness statement(s) sent to you with this notice. Tell us here if you object to the witness statement(s) and why :

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Enforcement & On Street Operations
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TfL Case Number 2003239

To: Mr Mike Mouse
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NAMES OF WITNESSES WHOSE STATEMENTS ARE ENCLOSED

LIAM O'SHEA

Transport for London

Statement of Witness

(Criminal Procedure Rules, r. 27.2; Criminal Justice Act 1967, s.9, Magistrates' Courts act 1980, s.5B)

Statement of: LIAM O'SHEA

Age of witness: Over 18 Occupation of witness: Revenue Protection Inspector No. LB3009

Address of witness: 197 Blackfriars Road, London, SE1 8NJ.

Relative to: Mr Mike Mouse, 38a Baker Street, London, OO7 7OO 21 Apr 1984

This statement consisting of ONE page(s) each signed by me, is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

Signed…… …… Date……

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Signed …… …… Signature witnessed by …… …… ……
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- It is also an offence, punishable by a fine of up to £2500, to provide false information.

You must remember to bring a method of payment with you so that you can pay on the day. Fines can usually be paid either at the court or local bank by :

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* - in accordance with section 20A of the Criminal Justice Act 1991 (as amended by section 95 of the Courts Act 2003)

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- **Community Legal Service (CLS) Direct** : 0845 3454345 or www.clsdirect.org.uk
- **Citizens Advice**: www.citizensadvice.org.uk

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When to return the form:
The form should be returned as soon as possible. You may be requested to provide evidence of your financial circumstances, e.g. pay slips, benefit book, bills. Therefore, it is advisable to send copies of these when you return this form, or bring them with you on the day of your hearing.

Where to return the form:
The form should be returned by post or in person to the court that issued the summons. The address for this can be found on the summons form or can be obtained from your local magistrates' court. Email or telephone responses are not acceptable.

Further assistance

Should you have problems reading this form, please contact the magistrates' court that issued this notice who will be able to provide the following alternatives:

- Additional languages: Chinese, Greek, Gujarat, Hindi, Kurdish, Punjabi, Portuguese, Serbian, Croatian, Spanish, Turkish, Urdu and Welsh.
- Large print versions of this form are available - please contact the magistrates' court.

Printed language: **English**

HM Courts & Tribunals Service

FINE?

Make sure you can pay

This form gives you a chance to tell the court how much you can pay if you are fined. If you do not give this information to the court, you will be committing an offence and you may be fined more than you can afford.

Statement of your income and outgoings

All sections on this form must be answered and the form returned to the court before your hearing. **It is an offence not to provide means information.** See the other side for details

Please use BLOCK CAPITALS and black ink

HM Courts & Tribunals Service

IMPORTANT - For all your income and outgoings, please indicate if the figures are either: Weekly ☐ Fortnightly ☐ Monthly ☐

1. Personal details

First name(s)

Family name

Address

Postcode

Home telephone number

Mobile telephone number

Date of Birth

Gender Female ☐ Male ☐

National Insurance number

Vehicle registration number

Are you the registered owner of the vehicle? Yes ☐ No ☐

Case number

Date of hearing

Ref: Means information form v7.0

2. Income details

If you are employed

Employer's name

Employer's address

Postcode

Employer's telephone number

Occupation (state if self employed)

Net Pay (take home pay) £

Any other income £

If you are NOT employed

If you are unemployed, state since when

Job Seekers allowance £

If you receive benefits

Income Support	£
Pension credit	£
Tax credit	£
Other credits (housing, child)	£
Other benefits	£
Total income	£

3. Outgoings

Essentials and accommodation

Rent, mortgage or lodgings	£
Council tax	£
Food	£
Clothing	£
Insurance	£
Child maintenance	£

Travel and regular bills

Travel expenses	£
Vehicle fuel	£
Vehicle insurance and tax	£
Vehicle loan	£
Utility bills (gas, water, electricity etc)	£
Telephone (inc mobile)	£
Television subscription (licence, satellite etc)	£

Other

Lottery / entertainment	£
Drinking	£
Smoking	£
County court orders and other fines	£
Loan repayments	£
Catalogues	£
Credit card repayments	£
Total outgoings	£

4. Other Information

Number of dependent children

Ages:

Total savings £

Partner's income or benefits £

Number of adults in your home

Please add any other information you believe we should know about here:

Signed

Date

The information on this form may be used by a magistrates' court, or other authorised organisation acting under the court's instructions, to enforce collection of any court-ordered penalty imposed against the person named on the form in the event of non-payment of that penalty.

TRANSPORT FOR LONDON PROSECUTIONS

Frequently Asked Questions

Why am I being taken to court?

You are being taken to court because it is alleged that you have committed an offence. Details of the alleged offence are on the Charge Sheet enclosed with the Notice.

Do I have to attend the court in person?

No. If you are pleading guilty, you can complete the relevant form included with the Single Justice Notice and return it to the court, along with the means form on which you state your financial incomings and outgoings.

Where can I obtain advice?

You can seek advice from a solicitor or the Citizens Advice Bureau (CAB). Details of local solicitors and the nearest CAB are available from your local library or from any magistrates' court. Transport for London cannot give any advice with regard to completing the forms or on how you should proceed.

What happens if I just ignore the Notice?

If you do nothing, the court may hear the prosecution case in your absence and you will have no opportunity to put your side. You will also lose the reduction in fine for an early plea of guilty.

If I pay the costs will Transport for London withdraw the prosecution?

No. The Notice is telling you that Transport for London intends to apply to the court for a contribution towards the cost of prosecution. If you plead guilty or are found guilty, the court will normally order you to pay a fine, the costs to Transport for London, compensation for the unpaid fare and the statutory surcharge.

If I attend court will I have access to free legal representation?

The court will not issue you with a representation order, often called 'legal aid', in this type of case. However, if you come to court for a trial, you may bring someone to help and advise you how to put your defence to the court.

What happens if I wish to plead not guilty?

You should indicate this on the copy of the Charge Sheet that you return to the court. A date will then be set for a trial when the Inspector(s) concerned will also be present.

Will I be able to question or challenge the Inspector in court?

Yes. If you plead not guilty, you will have an opportunity at the trial to question and challenge the Inspector regarding the alleged offence.

Will a conviction go on my criminal record?

If you plead guilty or the court finds you guilty, you acquire a criminal conviction.

If the court convicts me in my absence or after a trial, do I have a right of appeal?

If, after receiving notice of conviction and sentence, you decide to appeal, you should inform the court as soon as possible. All appeals are to the Crown Court and must be made within 21 days of the conviction.

If the court orders me to make payments, what should I do?

You should pay the full amount immediately. If you cannot do so, contact the court without delay.

If I did not attend court, how will I know the outcome?

The court will inform you in writing of the outcome, normally within two weeks of the hearing.

Further information, including the *Transport for London Revenue Enforcement and Prosecutions Policy*, can be found on our website – http://www.tfl.gov.uk